

Present:
Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.2976 of 2005.

1 (Ka) (i) Most. Shamima Akter and
others

...Petitioners

-Versus-

1(a) Mst. Umme Salma and others

...opposite parties

Mr. Shasti Sarker, Advocates

...For the petitioners

Mr. Md. Helal Uddin Mollah, Advocate

...For the opposite parties

**Heard on 22.08.2024 & Judgment on
25.08.2024.**

This rule was issued calling upon the opposite party No.1 to show cause as to why the judgment and decree dated 11.05.2005 passed by the learned Additional District Judge, Kurigram in Other Class Appeal No.94 of 2002 dismissing the appeal and affirming the judgment and decree dated 11.06.2002 passed by the learned Joint District Judge, 1st Court, Kurigram in Other Class Suit No.08 of 1998 should not be set aside and/or pass such other order or orders as to this Court may seem fit and proper.

Facts in short are that the opposite party as plaintiff instituted above suit for declaration that the auction sale of the disputed ~~88~~¹/₂ decimal land pursuant to the execution of the

decree of Rent Suit No.719 of 1959 was unlawful and not binding upon the plaintiffs and for a decree of partition.

The plaintiffs claim title in the disputed land on the basis of purchase from the heirs and successive heirs of the C. S. recorded tenants of above land.

Defendants No.1-5 claim that the disputed joma was sold in auction on 10.11.1959 pursuant to the execution of decree of Rent Suit No.719 of 1959 and the defendant purchased above auction which was confirmed on 15.12.1959 and the defendants obtained delivering of possession through court on 29.02.1960.

At trial plaintiff and defendants examined 04 witnesses each and documents produced and proved by the plaintiff were marked as Exhibit No.1-8 series and those of the defendant were marked as Exhibit No.Ka-Cha series.

On consideration of facts and circumstances of the case and materials on record the learned Joint District Judge decreed the suit.

Being aggrieved by above judgment and decree of the learned Joint District Judge defendant as appellant preferred Other Class Appeal No.94 of 2002 to the District Judge, Kurigram who dismissed

above appeal and affirmed the judgment and decree of the trial court.

Being aggrieved by above judgment and decree of the court of appeal below the appellant as petitioner moved to this court and obtained this rule.

Mr. Shasti Sarker learned Advocate for the petitioner submits that the defendant purchased above property in auction which was sold in execution of the Rent decree passed by the learned Munsif in Rent Suit No.719 of 1959 and obtained sale certificate and delivery of possession through court. The defendant is in possession of the disputed land by constructing his dwelling house and excavating pond and above possession has been proved by legal evidence. The learned Judges of the courts below disbelieved the case of auction purchase of the defendants on erroneous perception that the whole sale acquisition of the rent receiving interest in greater Rangpur District took place on 11.12.1956 but in fact it was effective on 01.08.1963. As such the impugned judgment and decree passed by the learned District Judge, Kurigram/Rangpur is vitiated by illegality and not tenable in law.

Mr. Md. Helal Uddin Mollah learned Advocate for the opposite parties submits that above property was never sold in auction on 10.11.1959 pursuant to execution of a rent decree passed in Rent Suit No.719 of 1959 and the heirs of the C.S. recorded tenants were

in continuous and peaceful possession in above property. The defendants succeeded to prove their continuous possession in the disputed land by adducing consistent oral evidence of competent witnesses. The learned District Judge on correct appreciation of above materials on record rightly dismissed the appeal and affirmed the erroneous judgment and decree of the trial court which calls for no interference.

I have considered the submissions of the learned Advocates for the respective parties and perused the impugned judgment and decree and other materials on record.

It is crystal clear from the pleadings that the plaintiffs do not admit any title or possession of the defendants in the disputed khatian. Similarly the defendants do not admit that the plaintiffs have any right, title, interest and possession in the land of the disputed khatian. The plaintiffs claimed to have purchased the disputed $88\frac{1}{2}$ land by six registered kobla deeds from the heirs of C. S. recorded tenants claiming that the C.S. recorded tenants and their successors or heirs were in continuous possession of the disputed land.

On the other hand the defendants claimed that the land of the disputed khatian was sold in auction on 10.11.1959 pursuant to execution of the rent decree passed by the court of Munsif in Rent Suit

No.719 of 1959. The defendants claim title and possession in the disputed land on the basis of above auction purchase. As such the plaintiffs do not admit the defendant as their co-sharers, on the other hand the defendants also do not recognize the plaintiffs as their co-sharer.

At the time of hearing Mr. Shasti Sarker learned Advocate for the petitioner repeatedly stated that the defendants do not admit the plaintiffs as their co-sharers since the plaintiffs do not have any right, title interest possession in the disputed khatian. Similarly Mr. Md. Helal Uddin Mollah learned Advocate for the opposite party submitted that the opposite party plaintiffs do not admit that the petitioners-defendants are their co-sharers in the disputed since the petitioner did not have any right interest, title or possession in the land of the disputed joma.

This suit is in fact a suit for partition. The plaintiff sought separate saham for disputed $88\frac{1}{2}$ decimal land and the learned Joint District Judge decreed the suit in preliminary form and granted the plaintiffs separate saham for above land. The declaration that above mentioned auction sale of the disputed land was collusive, forged and not

binding upon the plaintiffs was a secondary or ancillary relief.

It is well settled that a suit for partition can only be filed by one co-sharer against the other co sharer. In such a suit all disputes as to the title, extent of share, possession and other disputes between the co-sharers are finally determined. A plaintiff cannot file a suit for partition against a defendant whom the plaintiff does not admit to be his co-sharer.

In a suit for partition a plaintiff enjoys a unique privilege as to the possession of the disputed land. The principle as to possession applicable in a suit for partition is that the possession of one co-sharer is possession of all co-sharers and a plaintiff in a properly instituted partition suit need not prove his physical possession in the undivided ejmali property.

In order to get above benefit as to the possession in the disputed land sometimes some plaintiffs who are out of the possession files a suit for partition instead of filing a suit for declaration of tile and recovery of possession against the defendant whom the plaintiff does not admit as co-sharers.

In above view of the facts and circumstance of the case and materials on record I hold that this suit for partition is not maintainable in law since the parties to the suit do not admit other side as his a co-sharers. But the learned District Judge failed to appreciate above aspect of the suit and erroneously dismissed the appeal and affirmed the erroneous judgment and preliminary decree of the trial court which is not tenable in law.

It is admitted that the plaintiff of this suit namely Riazuddin Biswas previously as plaintiff filed Title Suit No.92 of 1989 for declaration of title and recovery of possession for a part of the disputed land of this suit against the defendant of this suit in the court of Assistant Judge, Rajarhat, Kurigram. In above suit an issue was framed as to title of the plaintiffs in above land and above suit was dismissed on contest due to failure of the plaintiff to prove his title in above land. The plaintiff did not prefer any appeal against above judgment and decree which is still in force.

As such petitioner-defendant rightly claimed that this suit was barred by the principle of Res-judicate as provided in section 11 of the Code of Civil procedure, 1908. But unfortunately the

learned Judges of the courts below failed to appreciate above position of the suit and most illegally decreed the suit and dismissed the appeal which is not tenable in law.

In above view of materials on record I find substances in this application and the rule issued in this connection deserves to be made absolute.

In the result, the rule is made absolute.

The judgment and decree dated 11.05.2005 passed by the learned Additional District Judge, Kurigram in Other Class Appeal No.94 of 2002 dismissing the appeal and affirming the judgment and decree dated 11.06.2002 passed by the learned Joint District Judge, 1st Court, Kurigram in Other Class Suit No.08 of 1998 is set aside and above suit is dismissed on contest without costs.

The ad-interim order passed at the time of issuance of the rule is hereby vacated.

Let the lower Court's record along with a copy of this judgment be transmitted down to the Court concerned at once.

Md. Kamrul Islam
A.B.O